

Amicus Curiae Outline: Judicial Review Cannot Be Defeated by Secrecy

Rolf Carlson

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Introduction and Reading Order

This document assembles the components of a draft amicus curiae brief addressing a structural constitutional question concerning judicial review and executive secrecy. The sections are arranged in the order a Justice or law clerk would ordinarily encounter and evaluate the argument.

The Opening Statement introduces the institutional stakes of the case and situates the dispute within the constitutional framework established by *Marbury v. Madison*. The Question Presented follows, framing the precise constitutional issue before the Court.

The Statutory Background then explains the enactment of the *Jeffrey Epstein Network Publication Act of 2024*, which provides the legal context giving rise to the present dispute and clarifies that the case concerns alleged nonexecution of a duly enacted federal statute rather than a generalized disagreement over secrecy policy.

The Summary of Argument presents the constitutional rule proposed by amicus. The Proposed Holding supplies opinion-style language articulating that rule in a form usable by the Court. The Limiting Principle and Standard of Application follow to demonstrate that the proposed rule is narrow, administrable, and consistent with existing doctrines protecting national security.

Finally, the Argument Outline shows how these components integrate into a conventional Supreme Court brief structure.

How to Use This Document

This document is a draft amicus curiae brief prepared for use in potential litigation concerning judicial review of executive compliance with the *Jeffrey Epstein Network Publication Act of 2024*. It is not presently filed in any court. Rather, it is intended to articulate a constitutional framework that may assist courts, litigants, or amici should a dispute arising under the Act proceed through the federal judiciary.

Under Article III of the Constitution, the Supreme Court considers only cases and controversies presented through ordinary judicial processes. A dispute concerning implementation of the Act would ordinarily arise when a party asserting statutory rights seeks relief in federal district court, challenges executive noncompliance or asserted privileges preventing disclosure, and pursues appellate review following final judgment. If such litigation presents the question whether

executive secrecy may prevent courts from determining compliance with federal law, that issue may ultimately be presented to the Supreme Court through a petition for certiorari.

This document is structured so that its components may be incorporated, in whole or in part, into an amicus filing at the certiorari stage or merits stage of such a case. The Question Presented, Proposed Holding, Limiting Principle, and Standard of Application are written in forms intended to assist judicial consideration of the constitutional issue should it reach the Court. Publication of this draft is intended to promote transparency, scholarly critique, and refinement of the legal arguments prior to any formal filing.

Opening Statement

This case presents a foundational question concerning the continued operation of judicial review within the constitutional structure. Since *Marbury v. Madison*, it has been settled that “[i]t is emphatically the province and duty of the judicial department to say what the law is.” 5 U.S. (1 Cranch) 137, 177 (1803). That duty presupposes that courts possess the practical ability to determine whether federal law has been faithfully executed and whether governmental action complies with constitutional limitations. When the Executive invokes secrecy in a manner that prevents courts from evaluating compliance with duly enacted law, the exercise of judicial review itself is placed at issue.

Congress enacted the *Jeffrey Epstein Network Publication Act of 2024* to require disclosure of specified governmental records under procedures designed to balance transparency with legitimate national-security protections. Petitioners allege that executive officials have declined to implement that statutory mandate, asserting privileges that prevent judicial determination of whether the law is being faithfully executed. The question before this Court is therefore not whether secrecy may ever be justified, but whether secrecy may be invoked in a manner that disables the Judiciary from resolving a constitutional dispute concerning the execution of federal law. The Constitution does not permit any branch to place its own conduct beyond judicial examination, for judicial review would otherwise become nominal rather than real.

The Constitution does not permit the Executive to invoke secrecy in a manner that prevents the Judiciary from determining whether federal law is being faithfully executed.

Question Presented

Whether the Constitution permits the Executive Branch to invoke executive privilege or the state-secrets doctrine to withhold materials where such secrecy prevents the Judiciary from conducting meaningful judicial review of substantial constitutional claims alleging that executive power itself may have been exercised in violation of constitutional limitations, including claims that undisclosed foreign influence or corruption may have affected governmental decisionmaking.

Statutory Background: The Jeffrey Epstein Network Publication Act

Congress enacted the *Jeffrey Epstein Network Publication Act of 2024* (“the Act”), Pub. L. No. 119–38, in response to longstanding public concern regarding the completeness and transparency of governmental disclosures relating to investigations connected to Jeffrey Epstein and associated individuals. The statute reflects Congress’s determination that public confidence in federal institutions requires the orderly disclosure of specified investigative records, subject to limited and defined statutory exceptions.

The Act directs designated executive agencies, including the Department of Justice, to identify, review, and publish categories of records described by the statute within prescribed timelines. In enacting the law, Congress exercised its constitutional authority to legislate concerning governmental transparency, oversight of executive agencies, and the administration of federal records. The statutory scheme establishes procedures governing redaction, classification review, and protection of legitimately sensitive information, while expressing Congress’s judgment that disclosure, rather than indefinite secrecy, serves the public interest under the circumstances addressed by the Act.

Petitioners allege that executive officials have declined to produce or fully disclose materials required by the Act, invoking executive privilege, classification authority, or related doctrines of confidentiality. According to Petitioners, these assertions of secrecy have prevented implementation of Congress’s disclosure mandate and have foreclosed meaningful judicial determination of whether the statute is being faithfully executed.

The present dispute therefore arises not merely from a disagreement over access to particular documents, but from an asserted conflict between a duly enacted federal statute requiring disclosure and executive claims of secrecy that allegedly prevent courts from determining whether the law has been lawfully carried out. Resolution of that conflict implicates fundamental constitutional principles, including the Judiciary’s authority to interpret and enforce federal law and the Executive’s obligation under Article II to “take Care that the Laws be faithfully executed.” U.S. Const. art. II, § 3.

This statutory context frames the constitutional question presented: whether executive secrecy may be invoked in a manner that prevents judicial review of compliance with a congressional command governing disclosure of governmental records.

Summary of Argument

This case does not concern ordinary disputes over classification or national-security confidentiality. It presents a prior constitutional question: whether executive secrecy may be used to prevent judicial review of allegations that executive decisionmaking itself may be compromised by undisclosed foreign influence or corruption. Judicial review is the Constitution’s principal safeguard against unlawful exercises of governmental power. That safeguard becomes illusory if the Executive may withhold evidence necessary for courts to determine whether constitutional violations have occurred. Executive privilege and the state-secrets doctrine exist to protect the Nation, not to shield unconstitutional conduct from judicial scrutiny. As this Court held in *United States v. Nixon*, generalized assertions of confidentiality must yield when they obstruct the administration of constitutional justice. Where secrecy prevents courts from determining whether executive authority

is being exercised in fidelity to the Constitution, the assertion of privilege exceeds constitutional limits. The Judiciary must retain the capacity to verify that the constitutional structure itself remains intact. Amicus therefore urges the Court to hold that executive secrecy cannot defeat judicial review where the withheld materials are necessary to determine whether executive power is being exercised consistently with constitutional governance.

Interest of Amicus Curiae

Citizens for Constitutional Fidelity is a civic organization devoted to the preservation of constitutional governance and the structural safeguards designed to prevent corruption, foreign influence, and abuse of public trust within the federal government. Amicus submits this brief to address a question of exceptional constitutional importance: whether the Executive Branch may invoke secrecy in a manner that prevents the Judiciary from determining whether executive power itself is being exercised constitutionally. *Rule 37 disclosures are to be included here in final form.*

Proposed Holding

The Constitution does not permit the Executive Branch to invoke secrecy in a manner that prevents the Judiciary from performing its duty of judicial review. Where executive privilege or the state-secrets doctrine is asserted to withhold materials necessary for a court to determine whether executive power itself has been exercised consistently with the Constitution, the privilege must yield to procedures sufficient to preserve meaningful judicial adjudication. Judicial review, established in *Marbury v. Madison*, requires that federal courts possess the practical ability to determine the legality of governmental action. That function would be rendered illusory if the Executive could unilaterally foreclose judicial examination of evidence bearing directly on constitutional compliance. Executive confidentiality serves important national interests, particularly in matters of diplomacy and national security. But such confidentiality exists within the constitutional structure and cannot operate to place executive action beyond constitutional scrutiny. As this Court recognized in *United States v. Nixon*, generalized assertions of privilege must yield where necessary to preserve the administration of constitutional justice. Accordingly, when a litigant presents a substantial, non-frivolous claim that withheld materials are necessary to determine whether executive conduct violates constitutional limitations, including allegations that governmental action may be affected by undisclosed foreign influence or corruption, the Judiciary must retain authority to verify the legitimacy of the privilege claim through independent judicial processes. The Constitution requires not public disclosure in every instance, but meaningful judicial verification. Courts therefore must employ procedures adequate to ensure that executive secrecy does not defeat constitutional adjudication. Such procedures may include in camera review, appointment of a security-cleared special master, segregability analysis, or other mechanisms consistent with the protection of legitimate national-security interests. The governing principle is straightforward: executive privilege protects the Nation, not the Executive from constitutional review. A privilege asserted in a manner that disables the Judiciary from determining constitutionality exceeds constitutional bounds. The judgment below is therefore vacated, and the case remanded for proceedings consistent with this opinion.

Independent Verification Is Required Where Classification Determinations Are Themselves at Issue

The Constitution permits the Executive Branch to classify information in order to protect national security. But when the legality of executive conduct or compliance with a statutory disclosure mandate is itself under judicial review, classification determinations cannot operate as self-validating conclusions immune from independent examination.

Classification decisions are necessarily made within the Executive Branch and therefore reflect institutional judgments of the very entity whose conduct is being challenged. Where secrecy is invoked to prevent courts from determining whether federal law has been faithfully executed, exclusive executive control over classification review creates a structural conflict of interest inconsistent with meaningful judicial review.

This concern does not imply bad faith or require courts to second-guess national-security expertise. Rather, it reflects a basic separation-of-powers principle: no branch may conclusively determine the scope of its own constitutional immunity from judicial scrutiny. Accordingly, courts must retain authority to employ independent verification mechanisms—including in camera review, special masters, or comparable procedures—to ensure that classification serves legitimate security interests rather than foreclosing adjudication.

Limiting Principle

The rule announced today is a narrow one. Executive privilege and the state-secrets doctrine remain vital components of the constitutional structure, and courts must continue to afford substantial respect to executive assessments concerning national security and foreign affairs. Judicial verification is not warranted merely because litigants dispute executive judgments or seek disclosure of sensitive information. Rather, heightened judicial review is required only where a court determines that (1) a substantial and non-speculative constitutional claim has been presented, and (2) the withheld materials are plausibly necessary to resolve whether the exercise of executive power itself complies with constitutional limitations. Routine policy disagreements, generalized allegations of misconduct, or speculative assertions of impropriety do not suffice to overcome the ordinary presumption of executive confidentiality.

Nor does this rule require public disclosure of classified information or judicial second-guessing of operational national-security decisions. The Constitution demands only that courts retain the practical capacity to adjudicate constitutional claims through procedures that preserve both security and accountability. Where meaningful judicial review can be accomplished through in camera inspection, use of cleared officers of the court, summaries, substitutions, or other protective mechanisms, those measures remain preferred. Public disclosure becomes relevant only if no constitutionally adequate alternative permits adjudication to proceed. In this manner, the Judiciary preserves its duty to say what the law is while respecting the Executive's constitutionally assigned responsibilities in safeguarding the Nation.

Standard of Application

To ensure that executive secrecy does not defeat the constitutional function of judicial review while preserving the Executive's authority in matters of national security, courts confronted with assertions of executive privilege or the state-secrets doctrine in cases presenting structural constitutional claims should apply the following framework.

(1) Threshold Constitutional Showing

The court must first determine whether the party seeking review has presented a substantial, non-frivolous constitutional claim. The claim must allege a violation of identifiable constitutional limitations on governmental power rather than a generalized grievance, policy disagreement, or speculative concern. Allegations supported by specific factual predicates, sworn submissions, or corroborating circumstances may satisfy this requirement.

(2) Materiality and Necessity

The court must next assess whether the withheld materials are plausibly material to resolving the constitutional question presented. Judicial verification is warranted only where the evidence sought bears directly on the legality of the challenged governmental action and where adjudication cannot proceed meaningfully without some form of access to the information.

(3) Adequacy of Protective Alternatives

Before ordering broader disclosure, the court must consider whether constitutional adjudication can proceed through less intrusive means consistent with national-security protection. Such measures may include in camera judicial inspection, appointment of a security-cleared special master, controlled evidentiary summaries, substitutions, or other procedures sufficient to permit adversarial testing without unnecessary exposure of sensitive information.

(4) Preservation of Meaningful Judicial Review

If the court determines that available protective alternatives are insufficient to permit meaningful adjudication, it must fashion relief adequate to preserve the judicial power. The decisive inquiry is whether the privilege, as asserted, would otherwise prevent the court from determining the constitutionality of executive conduct. Where secrecy would render judicial review merely formal or illusory, additional disclosure measures may be required to the extent necessary to restore genuine adjudication.

(5) Narrow Tailoring and Continuing Supervision

Any disclosure ordered under this framework must be narrowly tailored to the constitutional necessity identified and remain subject to continuing judicial supervision. Courts shall minimize exposure of sensitive information while ensuring that executive privilege is not applied in a manner that places governmental action beyond constitutional scrutiny.

Argument Outline

This section is a structural outline of how the brief can present the doctrine in conventional form. It is not a full draft, but it shows how the components above map onto standard Supreme Court headings.

I. Judicial Review Cannot Be Defeated by Executive Secrecy

- Judicial review requires the practical capacity to adjudicate constitutionality.
- A privilege claim that forecloses adjudication exceeds constitutional bounds.
- The Court should reaffirm that the Judiciary retains ultimate authority to determine the privilege's scope.

II. Executive Privilege and State Secrets Are Qualified Doctrines Within the Constitutional Order

- Confidentiality serves national interests but does not place the Executive above the law.
- *United States v. Nixon* supplies the principle that generalized privilege yields to constitutional necessity.
- The same principle governs where secrecy would render judicial review illusory.

III. The Constitution Treats Undisclosed Foreign Influence as a Core Structural Threat

- Foreign influence concerns are constitutionally salient and structurally relevant.
- When allegations are substantial and non-speculative, courts must retain capacity to test them.
- The inquiry is institutional and adjudicative, not political or rhetorical.

IV. The Proper Remedy Is Judicially Managed Verification, Narrowly Tailored to Constitutional Need

- Apply the Standard of Application to determine when heightened verification is required.
- Prefer in camera review, cleared special masters, summaries, and substitutions where adequate.
- Order only what is necessary to restore meaningful judicial review.

Conclusion

Executive secrecy may not be invoked in a manner that defeats judicial review of substantial constitutional claims concerning the legality of executive action. Where assertions of privilege prevent

courts from determining whether federal law has been faithfully executed, judicial relief must ensure meaningful adjudication through appropriately protective procedures.

For the foregoing reasons, the judgment below should be vacated and the case remanded for proceedings consistent with this Court's opinion.

Because judicial review cannot exist where executive secrecy prevents courts from determining whether federal law has been faithfully executed, the Court should reaffirm that no assertion of privilege may place constitutional compliance beyond judicial examination.

Respectfully submitted,

Counsel for Amicus Curiae

Prepared by Citizens for Constitutional Fidelity.

Primary drafting coordination by Rolf Carlson.

This document is a public draft and has not been filed in any court.